

26SMCV01613 26SMCV01613

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-01

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

1, 2026

CASE NUMBER

26SMCV01613

MOTION

Relief

from Waiver

MOVING PARTY

Defendant

Mazda Motor of America, Inc. dba Mazda North American Operations (erroneously
sued as Mazda Motor of America, Inc.)

OPPOSING PARTY

none

This case arises from allegations that Defendant sold Plaintiff a defective vehicle and failed to repair or replace it, in violation of the Song Beverly Act.

On March 25, 2026, Plaintiff Zane Schwartz ("Plaintiff") filed suit against Defendant Mazda Motor of America, Inc. ("Mazda" or "Defendant") alleging two causes of action for breach of express warranty and breach of implied warranty under the Song-Beverly Act.

Defendant now moves for relief from waiver of discovery objections pursuant to Code of Civil Procedure section 2031.300, subdivision (a). The motion is unopposed.

DISCUSSION

Code of Civil Procedure section 2031.300 provides that if a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the party to whom the demand is directed waives any objection to the demand, including one based on privilege or on the protection for work product. (Code Civ. Proc., 2031.300, subd. (a).)

The court may, however, on motion, relieve that party from this waiver if both (1) the party has subsequently served a response that is in substantial compliance with the code and (2) the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, subd. (a).)

Here, Plaintiff electronically served the Request for Production of Documents, Set One ("RPD") on May 13, 2026, making the responses due by June 16, 2026. (Chavez Decl. ¶ 3.) Defense counsel's legal secretary informed Defendant's counsel on June 12, 2026 that she intended to request an extension of time to respond to the discovery at issue, but inadvertently neglected to do so. (Chavez Decl. ¶ 5.)

On June 22, 2026, Plaintiff's counsel inquired about the overdue discovery responses. (Klimkowski Decl. ¶¶ 8-9 and Ex. B.) On July 6, 2026, Defendant served responses to the RPD.

(Klimkowski Decl. ¶¶ 13-14 and Ex. C.)

The verifications were served on July 17, 2026. (Id. at ¶ 15.)

Therefore, Defendant has demonstrated both that substantially compliant responses have since been served and that the failure to serve a timely response was a result of mistake, inadvertence, or excusable neglect, and Plaintiff has not opposed the motion to argue otherwise.

CONCLUSION AND ORDER

For the foregoing reasons, the Court grants Defendant's unopposed motion for relief from waiver of objections in connection with the RPD.

Further, Defendant shall lodge and serve a proposed Order in conformance with the ruling on or before September 8, 2026.

Further, Defendant shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 1, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court